

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 15, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BANK OF AMERICA, N.A. vs. DERRICK L. TURNER; ET AL.
Case No. CL25-04331**

Motion filed by Plaintiff for Judgment on the Pleadings

TENTATIVE RULING

Plaintiff's motion for judgment on the pleadings is denied. Defendant's statement in his Answer that, "Bank of America failed to fulfill its end of the bargain" is a sufficient denial of the essential element of the Plaintiff's performance for a breach of contract action. (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

**JANE DOE #1 (J.C.); ET AL. vs. CITY OF FAIRFIELD; ET AL.
Case No. CU25-06196**

FSUSD's Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR TO ADDRESS THE FOLLOWING ISSUES:

1. Whether leave to amend should be granted or not and the impact of any recent discovery.
2. The source of the citation for *Ralph v. City of New Orleans* (1972) 22 Cal.3d.1.

Defendant FAIRFIELD SUISUN UNIFIED SCHOOL DISTRICT (“FSUSD”) demurs to the causes of action against it alleging violation of the Ralph Act, violation of Education Code section 220, and violation of Title IX, 20 U.S.C. § 1681 within Plaintiffs JANE DOE (A.C.) and JANE DOE (J.C.)’s first amended complaint (“1AC”). FSUSD simultaneously moves to strike the complaint’s prayers for attorneys’ fees as against FSUSD. The court notes that the 1AC also asserts negligence against FSUSD, but this cause of action is not included in the instant demurrer. Summarized, the complaint alleges that FSUSD’s employee, contractor, and/or agent Defendant JAMES WILGUENSON LOUIS (“LOUIS”) groomed and made sexual advances on the minor Plaintiffs in 2024 while they were students at FSUSD’s Rodriguez High School, where LOUIS was a School Resource Officer.

Legal Standard. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (Id. at 1098–1099; Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 551 at fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247.)

Ralph Act. Plaintiffs’ Ralph Act cause of action is infirm. Plaintiffs do not state conduct that constitutes a Ralph Act violation. The elements of a Ralph Act claim are (1) the defendant threatened or committed violent acts against the plaintiff or his property, (2) a motivating reason for the conduct was the defendant’s perception of the plaintiff’s membership in a protected class, (3) that the plaintiff was harmed, and (4) that the defendant’s conduct was a substantial factor in causing the harm. (CACI 3063; *Austin B. v. Escondido Union School District* (2007) 149 Cal.App.4th 860, 880-881.)

Ramirez v. Wong (2010) 188 Cal.App.4th 1480 (*Ramirez*) is instructive. In *Ramirez*, the plaintiffs sued their landlord, Wong, for a violation of Civil Code Section 51.7, based upon the conduct of Wong’s resident manager, Valdez. The plaintiffs alleged that Valdez entered their apartment, went into the bedroom, removed the plaintiffs’ underwear from a dresser drawer, and sniffed the underwear. (*Id.* at p. 1482.) In affirming the trial court’s ruling sustaining the defendant’s demurrer, the *Ramirez* court explained:

“Plaintiffs contend that a jury should decide whether they “could reasonably fear rape or other sexual attack by [the landlord’s] resident male manager” as a result of his conduct, and that a plaintiff need not be physically present with the defendant in order to state a cause of action under section 51.7 for “intimidation by threat of violence” (§ 51.7, subd. (a).) While the latter point may be correct, the pertinent point is that no threat was made, either in the presence of

plaintiffs or otherwise. Valdez did not express any intention, either by words or conduct, at the time he entered plaintiffs' apartment or at any other time, to inflict injury on plaintiffs or their property. The statute requires violence or a threat of violence; it is, after all, a "hate crimes" statute. (D.C., *supra*, 176 Cal.App.4th at p. 844.) There can be no "threat of violence" without some expression of intent to injure or damage plaintiffs or their property, and there simply was none. (See Webster's 3d New Internat. Dict. (2002) p. 2382 [defining "threat" as involving "an expression of an intention to inflict evil, injury, or damage on another"]; cf. *Coon v. Joseph* (1987) 192 Cal.App.3d 1269, 1277–1278 [237 Cal. Rptr. 873] [no cause of action under § 51.7 where plaintiff alleged his male life partner was verbally and physically assaulted in plaintiff's presence; plaintiff's complaint established "that no violence or intimidation was committed or threatened against [plaintiff's] person and thus no cause of action exists in his own right"].) Again, Valdez's conduct may render him liable for a variety of torts, but it did not violate plaintiffs' right "to be free from any violence, or intimidation by threat of violence" based on their sex or marital status under section 51.7." (*Id.* at 1486-1487.)

In the present case, Plaintiffs have not alleged any facts showing a threat of violence against Plaintiffs. Plaintiffs allege that LOUIS sent them sexually explicit text messages and a photograph of his penis. (1AC at ¶¶ 36.) The alleged conduct is offensive and degrading but does not constitute violence or a threat of violence. LOUIS is alleged to have been employed as both a police officer and a school resource officer but the conduct alleged does not show any threat to utilize his position to force sexual activity with Plaintiffs. As such, Plaintiffs have not alleged a Ralph Act claim on these facts.

Education Code Section 220; Title IX, 20 U.S.C. § 1681. Plaintiffs' claim for harassment and discrimination under California's Education Code section 220 shares its elements with their claim for violation of 20 U.S.C. § 1681. (*Donovan v. Poway Unified School District* (2008) 167 Cal.App.4th 567, 579-581.) These elements are (1) the plaintiff suffered severe, pervasive, and offensive harassment that effectively deprived the plaintiff of equal access to education, (2) the school district had actual knowledge of that harassment, and (3) the school district acted with deliberate indifference in the face of that knowledge. (*Ibid.*)

Plaintiffs do not sufficiently state these elements. The 1AC does not sufficiently state "severe, pervasive, and offensive" harassment that "effectively deprived the plaintiffs of the right of equal access to educational benefits and opportunities." LOUIS's harassing conduct occurred on March 8 and 9, 2024 and consisted of sending a handful of explicit text messages and a graphic photograph. Without diminishing the offensiveness and reprehensibility of LOUIS's alleged conduct, the facts stated cannot be interpreted as "pervasive" harassment when it consisted of some messages sent over two days. (1AC at ¶¶ 36.) The 1AC does not sufficiently state FSUSD's actual knowledge of this harassment. Allegations that FSUSD was warned of LOUIS's unfitness for his position from tips from students and parents do not speak to its actual knowledge of his sexual harassment of Plaintiffs on March 8 and 9, 2024. The 1AC does not sufficiently state FSUSD's deliberate indifference to LOUIS's harassment of Plaintiffs. It states that he

was promptly arrested on March 9, 2024 after sending the graphic communications. (*Id.* at ¶ 39.) Plaintiffs' general allegations that FSUSD did not investigate LOUIS, concealed his conduct from parents and law enforcement, and held him out as trustworthy do not suffice to state deliberate indifference against the specific allegation that LOUIS was swiftly apprehended. (*Id.* at ¶ 178.) There was no window of time in which FSUSD plausibly could have concealed LOUIS's harassment from law enforcement where LOUIS was arrested by law enforcement immediately after engaging in harassment, for example.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc. § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc. § 437, subd. (a).)

With no viable Ralph Act or Title IX claim against FSUSD Plaintiffs state no path to recovery of attorneys' fees against FSUSD.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)

THE PARTES ARE TO APPEAR TO ADDRESS WHETHER LEAVE TO AMEND SHOULD BE GRANTED OR NOT AND THE IMPACT OF ANY RECENT DISCOVERY.

Conclusion. FSUSD's demurrer is sustained. FSUSD's motion to strike the 1AC's prayer for attorneys' fees against FSUSD is granted. No prayers as regards other defendants are ordered struck at this time.

DGDG 18, LLC vs. EBONAE WEBB-POSEY
Case No. CU25-08730

- 1). Motion by DGDG 18, LLC to Confirm Arbitration Award; and
- 2). Motion by EBONAE WEBB-POSEY to Vacate Arbitration Award

TENTATIVE RULING

Absent grounds for revoking of any contract, an agreement in writing to submit disputes to arbitration is enforceable. C.C.P. §1281.

WEBB-POSEY signed the written purchase agreement, and in fact was the party who initiated arbitration of her claims, which later grew to include the cross-claims of DGDG against her.

When a claim is submitted to arbitration, and an arbitration award is issued, a party can petition the court to confirm the award as a judgment under C.C.P. §1285, or petition the court to vacate the award under C.C.P. §1286.2.

The procedure for confirming an arbitration award and for vacating an arbitration has been followed here by the parties. DGDG filed the petition to confirm, per C.C.P. §1285. WEBB-POSEY filed a petition of her own in response, requesting the court to vacate the award, which is authorized by C.C.P. §1285.2. While neither party sought to have a hearing date set for their petitions at time of filing, the court has since rectified that matter, setting both for hearing at the same time.

Judicial review of an arbitration award is very limited, and grounds for vacating arbitration awards are essentially restricted to procedural defects, bias or corruption by the arbitrator, or exceeding their powers, but not substantive errors in applying the law. C.C.P. §1286.2(a).

Errors of law, or claimed insufficiency of evidence to support the arbitrator's award, are not grounds for vacating it.

Arbitration awards are final and conclusive because the parties have agreed they should be so. (Moncharsh, supra, 3 Cal. 4th 1, 10.) "This expectation of finality strongly informs the parties' choice of an arbitral forum over a judicial one. The arbitrator's decision should be the end, not the beginning, of the dispute. [Citation.]" (Ibid.) To ensure the arbitration decision is final and conclusive, only limited judicial review is available. Courts may not review the merits of the controversy, the validity of the arbitrator's reasoning, or the sufficiency of the evidence. (Id. at p. 11.) Indeed, an arbitrator's decision is not generally reviewable for errors of fact or law, even if the error appears on the face of the award and causes substantial injustice. (Id. at p. 6.) "[A]n award reached by an arbitrator pursuant to a contractual agreement to arbitrate is not subject to judicial review except on the grounds set forth in [Code of Civil Procedure] sections 1286.2 (to vacate) and 1286.6 (for correction)." (Id. at p. 33.) Jordan v. Department of Motor Vehicles (2002) 100 Cal.App.4th 431, 443.

An arbitrator can base their award on principles of equity and good conscience, even if that conflicts with the law that courts would apply had the dispute not gone to arbitration.

[A]rbitrators, unless specifically required to act in conformity with rules of law, may base their decision upon broad principles of justice and equity, and in doing

so may expressly or impliedly reject a claim that a party might successfully have asserted in a judicial action." (Sapp v. Barenfeld (1949) 34 Cal.2d 515, 523 [212 P.2d 233]; see also Morris v. Zuckerman (1968) 69 Cal.2d 686, 691 [72 Cal.Rptr. 880, 446 P.2d 1000]; Grunwald-Marx, Inc. v. L.A. Joint Board (1959) 52 Cal.2d 568, 589 [343 P.2d 23].) As early as 1852, this court recognized that, "The arbitrators are not bound to award on principles of dry law, but may decide on principles of equity and good conscience, and make their award ex aequo et bono [according to what is just and good]." (Muldrow v. Norris (1852) 2 Cal. 74, 77.) "As a consequence, arbitration awards are generally immune from judicial review. 'Parties who stipulate in an agreement that controversies that may arise out of it shall be settled by arbitration, may expect not only to reap the advantages that flow from the use of that nontechnical, summary procedure, but also to find themselves bound by an award reached by paths neither marked nor traceable and not subject to judicial review.' (Case v. Alperson (1960) 181 Cal.App.2d 757, 759. ...)" (Nogueiro v. Kaiser Foundation Hospitals (1988) 203 Cal.App.3d 1192, 1195 [250 Cal.Rptr. 478].) Moncharsh v. Heily & Blasé (1992) 3 Cal.4th 1, 10-11.

The justification for this limited review is to honor the parties' desire through arbitration to a quick and inexpensive alternative to litigation, while still allowing for vacating of an arbitration award for certain types of errors infecting the arbitration process itself. Id. at 12-13.

WEBB-POSEY's petition to vacate the arbitration award and/or opposition to DGDG's petition to confirm the arbitration award include a lot of arguments about errors of law, disguised as claims that the arbitrator "exceeded her powers" by ignoring the law WEBB-POSEY claimed to apply to the disputes. WEBB-POSEY also blamed her failure to appear at the arbitration proceedings to two deaths in her family, and two major surgeries she underwent during the course of arbitration, and the arbitrator's refusal to compel discovery. (All are assertions made in WEBB-POSEY's filings, but none are supported by any declaration under penalty of perjury).

The court finds no basis for vacating the arbitration award based on any of these arguments.

The Court addresses DGDG's new petition to confirm arbitration award.

The court has only four options in dealing with a petition regarding a matter which proceeded to binding arbitration and concluded with an arbitration award: (1) confirm the award as a judgment; (2) correct the award and confirm the corrected award as a judgment; (3) vacate the award; or (4) dismiss the proceedings.

Having found no basis for vacating the award, the court considers the other three options.

An arbitrator's award must be intended by the arbitrator to be final, to resolve all disputes presented to them in the arbitration process, except for those that are "potential, conditional or incapable of determination at the time of the [award]." Lonky v. Patel (2020) 51 Cal.App.5th 831, 846.

In general, an arbitrator's award is final if there is no more litigation needed.

"Final" defined: An award is "final" for confirmation purposes if it "resolves all issues submitted to arbitration, and determines each issue fully so that no further litigation is necessary to finalize the obligations of the parties." [Rocket Jewelry Box, Inc. v. Noble Gift Packaging, Inc. (2nd Cir. 1998) 157 F3d 174, 176; IDS Life Ins. Co. v. Royal Alliance Assocs., Inc. (7th Cir. 2001) 266 F3d 645, 650; Norfolk Southern Ry. Co. v. Sprint Communications Co. L.P. (4th Cir. 2018) 883 F3d 417, 422-423—award not final where appraiser reserved assent to award "without prejudice or time limitation" if his assumptions concerning marketable title and values should ever be proven incorrect]

On the other hand, some courts deem an award final if it resolves a separate claim or the liability of a party even if other claims or parties remain in the arbitration proceeding. [Hart Surgical, Inc. v. Ultracision, Inc. (1st Cir. 2001) 244 F3d 231, 233-234; Publicis Communication v. True North Communications, Inc. (7th Cir. 2000) 206 F3d 725, 729; see also IDS Life Ins. Co. v. Royal Alliance Assocs., Inc. (7th Cir. 2001) 266 F3d 645, 650]

An award is final when the "arbitrator himself thinks he's through with the case, then (the) award is final and appealable." [Smart v. International Brotherhood of Electrical Workers, Local 702 (7th Cir. 2002) 315 F3d 721, 725]. California Practice Guide (The Rutter Group 2026), Alternative Dispute Resolution, §5:503.6.

The question presented here is whether the August 29, 2025 arbitrator's award was final even if it contemplated DGDG repossessing the subject vehicle, and with DGDG later asking the court in August 18, 2026 filings for additional late fees, interest, attorneys fees and costs associated with the February 2026 repossession of the subject vehicle and restoring it.

The court finds that it cannot add any new fees or costs to the \$56,238.85 damage amount found in that August 29, 2025 arbitration award. Any fees and costs determinations would be required to be made in binding arbitration, per the language in the arbitration provision requiring arbitration of "any" claims.

If DGDG is willing to waive its claims for new fees and costs, not included in the August 29, 2025 arbitration award, the court could use DGDG's admissions as to \$19,000 in credits due to WEBB-POSEY from the repossession of the subject vehicle on February 25, 2026, to confirm the arbitration award for a total judgment in the amount of \$37,238.85.

Parties are therefore to appear for hearing, with DGDG to advise the court as to whether it prefers to return to arbitration, to seek the new fees and costs it tried to claim in its new petition, or elects to have the court correct and confirm the arbitration award for judgment in the amount of \$37,238.85.

SHARON DAILEY vs. ROSEANN TORRES; ET AL.
Case No. CU26-02756

Defendants' Motion for Order Declaring Plaintiff Vexatious Litigant

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows.

Defendants ROSEANN TORRES and TORRES LAW GROUP move for an order declaring self-represented Plaintiff SHARON DAILEY a vexatious litigant, requiring her to post security in the instant litigation, and subjecting her to a prefiling order prohibiting initiation of new legal actions without first obtaining the approval of the presiding judge of the court in which the action is proposed to be filed.

Judicial Notice. The court takes judicial notice under Evidence Code section 452, subdivision (d) of the records of six cases Plaintiff has filed in propria persona federal court and Solano County.

Vexatious Litigant Law. The "vexatious litigant" law exists to curb misuse of the court system by those acting in propria persona who repeatedly file groundless lawsuits or attempt to relitigate issues previously determined against them. (*Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 406.) Code of Civil Procedure section 391, subdivision (b) relevantly defines a "vexatious litigant" as a person who (1) maintains at least five actions in pro per within the preceding seven years and suffers final adverse determinations in each, (2) repeatedly attempts in pro per to relitigate the adversely-determined actions or the validity of the determination, or (3) within a given litigation repeatedly makes frivolous filings or engages in other frivolous and/or delaying tactics in pro per. A vexatious litigant can, upon a defendant's motion, be ordered to post security in order to continue with a case in which there is not a reasonable probability of the vexatious litigant prevailing. (Code Civ. Proc., § 391.1.) A vexatious litigant can also be subject to a prefiling order, on a defense motion or the court's own motion, that prohibits him from filing any new litigation in pro per in this state unless he obtains approval from the presiding judge of the court in which the filing is to occur. (Code Civ. Proc., § 391.7.)

For purposes of determining how many "litigations" a person has maintained within the last seven years, a "litigation" includes an appeal or civil writ proceeding. (*McColm v.*

Westwood Park Association (1998) 62 Cal.App.4th 1211, 1216.) Relatedly, appeals that are voluntarily dismissed or even involuntarily dismissed for procedural defects count as “finally determined adversely” to the purported vexatious litigant. (*Karnazes v. The Lauriedale Homeowners Association* (2023) 96 Cal.App.5th 275, 280.)

Plaintiff maintained six actions in pro per, including appeals, in the seven years before this motion was filed on May 27, 2026 and suffered adverse final determinations in each of them. (Declaration of Pascale Gagnon in Support of Motion at ¶¶ 4-25, Exhibits H-BB, KK.) She is therefore a vexatious litigant per Code of Civil Procedure section 391.1, subdivision (b)(1).

The court finds Plaintiff does not have a reasonable probability of prevailing in the instant action. Plaintiff brings claims for legal malpractice based on Defendants’ representation of her in three different cases (all distinct from the six cases demonstrating her vexatious litigant status). Plaintiff brings a claim for breach of fiduciary duty that is wholly dependent on the claims of malpractice.

On CU26-01594 *Dailey v. Brar* Plaintiff presents no evidence whatsoever that she was harmed by the alleged failure on Defendants’ part to file her action within the statute of limitations. Examination of the court file shows that the defense never filed any sort of motion or other adverse document raising the statute of limitations. There is no evidence before the court that negligent failure to observe the statute of limitations caused Plaintiff any harm.

On FCS058766 *Dailey v. Mineni* Plaintiff again presents no evidence that she was harmed by alleged malpractice, now taking the form of negligent failure to uncover evidence raising a triable issue of material fact in opposition to summary judgment. The motion for summary judgment came from Defendants Mineni and County of Solano. (Declaration of Roseann Torres in Support of Motion (“Torres Dec.”) at ¶ 11, Exhibit EE.) Plaintiff’s own declaration in opposition to the present motion states that she reviewed body camera footage produced by the defense in that case and realized that her claims against Mineni were unfounded because Mineni did not handcuff her, point a gun at her, or detain her when she was arrested. (Declaration of Sharon Dailey in Support of Opposition (“Dailey Dec.”) at ¶¶ 41-42.) Plaintiff does not explain how the body camera footage, which she labels “newly produced evidence” that she expected Defendants to properly analyze and incorporate into her case, shows that Defendants negligently failed to properly oppose summary judgment.

On FCS058487 *Dailey v. Solano County Sheriff* there is, again, no evidence from Plaintiff of any harm from alleged negligence in failing to file an amended complaint. Per examination of the court file she not only had a motion pending for leave to file an amended complaint at the time the present motion was filed but that motion for leave in FCS058487 was granted on August 7, 2026.

Conclusion. Defendants’ motion is granted. The court orders that Plaintiff is declared a vexatious litigant within the meaning of Code of Civil Procedure section 391,

subdivision (b)(1). Plaintiff must furnish \$10,000 security for the instant litigation within thirty days of the date of this order. Failure to furnish security will result in dismissal of this action. (Code Civ. Proc., § 391.4.) The court orders that Plaintiff is subject to a prefiling order prohibiting her from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

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